

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
(JUDICIAL DEPARTMENT)

W.P. No. 23462/2025

Muhammad Ahmad **Versus** District Judge, Pakpattan, etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
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09.05.2025 Ch. Muhammad Abbas Majeed, Advocate for petitioner.
Mr. Waheed Alam, A.A.G.
M/s Barrister Hammad Babar and Mehran Shah, Legal
Advisor on behalf of Punjab Healthcare Commission.

Instant constitutional petition is directed against the judgment dated 05.03.2025, whereby, appeal preferred by the petitioner under section 31 of the Punjab Healthcare Commission Act, 2010 (the “**Act, 2010**”), was dismissed, while maintaining the order of the Punjab Healthcare Commission (‘Commission’), dated 01.11.2024 regarding imposition of fine on the petitioner, upon being found involved in practicing quackery.

2. In substance, allegations were that petitioner was found engaged in unauthorized practice of allopathy at the premises [a Medical Store], without possessing requisite qualifications and registration(s)-cum-licenses essentially required to practice allopathy. This delinquency is punishable under the provisions of the **Act, 2010** and the Punjab Healthcare Commission Regulations for Banning Quackery in all its forms and manifestations and for dealing with Quacks, 2016 (**Regulations, 2016**).

Facts relevant for adjudication are that premises under reference was visited by the officers of the Commission on

various occasions and upon each such visit petitioner was found engaged in practicing allopathy, unauthorizedly, whereupon premises were sealed. Petitioner resisted the action, who de-sealed the premises and started business as usual – [premises was de-sealed on four occasions without any judicial order or permission of the Commission]. Audacity was admitted and petitioner tendered apology. Notices were issued and petitioner was quizzed, who submitted affidavit to acknowledge transgression. Petitioner claims having completed the course of Dispenser. After hearing, the Committee imposed penalty of Rs.450,000/-. Appeal preferred was dismissed. Hence, this Constitutional petition.

3. Learned counsel for the petitioner avers that contents of affidavit and apology letter provide no proof of alleged wrongdoing, since such documents were procured involuntarily and under pressure. Adds that officer(s) who had visited the premises were not authorized and had no authority to undertake the inspection in absence of adoption of statutory procedures provided under section 22 of the Act, 2010. Adds that petitioner was authorized to provide medicines as per the prescriptions presented at the counter. Further submits that mechanism provided in the Regulations, 2016 could not claim preference over the provisions of parent statute, hence, actions taken and orders passed in guise of Regulations, 2016 are devoid of any legal basis. To support submissions, counsel cites the case of “Manzoor Elahi Vs. District and Sessions Judge, Sargodha and 2 others” (PLD 2021 Lahore 843).

4. Conversely, learned counsel for the Commission and learned Law Officer emphasized that mode and mechanism provided for inspection under section 22 of the Act, 2010 is not attracted because petitioner is not a healthcare service provider but, engaged in quackery. Adds that officer(s), those who had visited the premises variously, were classified as *Manger Enforcement (Anti Quackery)*, and duly authorized by the Commission, who visited premises in localities, within the sphere of their duty rosters and if any suspicious activity – in the context of quackery – is found; the officers gather evidence, take preventive steps and submit reports accordingly. And thereafter procedures provided in law are followed. Submit that scope and extent of powers, to be exercised by the authorized officers, were provided in Regulations 2016, wherein, one of the powers is to seal premises, besides providing for taking preventive steps to safeguard public from the vices of quackery. It is apprised that decision in the case of Manzoor Elahi (supra) was set-aside by the Supreme Court of Pakistan, while deciding the case of 'Chairperson Punjab Healthcare Commission through Chief Executive Officer, Lahore and another v. The District & Sessions Judge Sargodha and another' in **Civil Petition No.5444 of 2021**, vide judgment dated 18.11.2021. Adds that on remand, W.P No.12424 / 2019 was partially allowed to the extent of reduction of quantum of penalty, without affecting the merits of determination of the wrong-done. Adds that decision dated 14.10.2024 in the case of Writ Petition No.7031/2023, in the case of Muhammad Tariq Javaid v. Punjab Healthcare Commission and others, was

also set-aside vide judgment dated 17.04.2025, by Supreme Court of Pakistan in the case of 'Punjab Healthcare Commission through its Chief Executive Officer, Office No.185 Ahmad Block, New Garden Town, Lahore and another v. Muhammad Tariq Javaid and others' in **Civil Petition No.5355 of 2024** – in latter case section 28 of the Act 2010 was interpreted and authority of the hearing committees to adjudicate and impose penalties was held ultra vires to section 28 *ibid*.

5. Heard. Record perused.

6. On factual plane there are no grounds or convincing reasons to disbelieve the allegations against the petitioner, which were fortified in wake of an affidavit submitted and remorse expressed for showing acts of defiance – where petitioner de-sealed medical store without authority, despite being repeatedly sealed. Objection to the contents of affidavit, during these proceedings, seems an obvious afterthought to wriggle out of representations made to avoid imposition of fine – and now when fine was imposed petitioner is attempting to renege. This obviously manifests absence of good faith. Documents reflect that petitioner appeared before the Committee, appointed by the Commission to conduct hearing and evaluate the report and evidence submitted by the *Enforcement Manager(s)*, where petitioner was confronted with allegations in a question-answer session, who acknowledged his wrongdoing and act of de-sealing premises on four occasions, unlawfully. Nothing substantial is available to counter or dismiss allegations of practicing allopathy without authorization / license – which activity is

termed as quackery and attracts appropriate action under the relevant law. I have examined the grounds of appeal, wherein, no-where, petitioner alleged that affidavit was procured through coercion, misrepresentation or undue influence. Submission of affidavit and acceptance of allegations constitutes an admission, which can be used against the petitioner in absence of any exception pleaded – conceptually and legally there is a difference between admission and confession; former is attracted to this case. Even otherwise, regulatory wrongdoing(s) is a specie of strict liability wrong(s), where guilty act alone has to be established. No case of abuse of procedural and substantial due process is made out – opportunity of hearing was granted and fine imposed commensurate with the gravity of allegations and acts detrimental to . public interest(s).

7. Now I attend the legal objections, alleging non-compliance of provisions of the Act, 2010. Learned counsel for the petitioner failed to convince that action proposed and powers extended under Regulations 2016 are inconsistent with or violates the scope and mandate of parent statute - section 22 of the Act, 2010 in the context of present case. Evidently, inspection envisaged under section 22 of the Act, 2010, and procedure provided and authority extended to the *Enforcement Managers* under Regulations, 2016, seems mutually exclusive and manifest no apparent conflict or contradiction –

peculiarity of this case hinges around allegations of quackery, and one who practices quackery cannot claim to run a healthcare establishment. I find no compelling reason and justification to declare that checks and preventive mechanisms provided under Regulations, 2016 are inconsistent or lack application in the context of section 22 of the Act, 2010. Evidently, section 22 of the Act, 2010 provided an added tier in cases where Commissions deems further examination into the activities carried out by proclaimed healthcare establishment. Hypothetically thinking; there may be an occasion where report(s) submitted by the *Enforcement Manager(s)*, eyes and ears of the Commission, may require further probe / examination into the scope of activities carried out by the delinquent, and the Commission may opt for mechanism provided under section 22 of the Act, 2010 - scope and intent of this judgment is not to dilate upon or discuss every possible situation and proceed to narrow down the options available in the context of peculiar situation encountered by the Commission. Section 22 of the Act, 2010 is not attracted, which otherwise manifest no conflict or aberration in enforcement of the Regulations, 2016, framed to realize and achieve the purpose of the Act, 2010. Regulations, 2016 provides for deployment of *Enforcement Managers* to maximize the reach of the Commission to take steps to achieve bigger objective,

i.e., to curb quackery. *Enforcement Managers* are authorized to inspect, collect evidence, prepare report and make submissions with the competent authority / committee(s) to enable later to act promptly and exercise powers and discharge functions assigned by the Commission - section 40 of the Act, 2010 empowers the Commission to make regulations for carrying out the purposes of the Act, 2010 and one of the functions and powers of the Commission is to take necessary steps to ban quackery in terms of section 4(2)(q) of the Act, 2010. Reading of section 22 of the Act, 2010 in a manner suggested by counsel for the petitioner would render the Regulations, 2016 ineffective, rather redundant. And such connotation in the context of circumstances of the case is unwarranted. I dismiss the argument that visits conducted and report prepared by the *Enforcement Manager(s)* are contrary to the mandate of or constitutes breach of section 22 of the Act, 2010.

8. Now I take-up gross misconception that only the Commission, and not the committee(s) constituted under the Regulations, 2016, is competent and empowered to impose fine. Is section 28 of the Act of 2010 confers exclusivity to the Commission with respect to imposition of fine? Apparently, the expression “fine” and “penalty” has been interchangeably used in the Act, 2010, hence, for the purposes of present judgment, there is no occasion to dilate upon them separately, to understand each’s

specific connotation. There is no cavil that power to impose and collect penalty is conferred upon Commission in terms of Section 4(2)(g) of the Act – and those powers are exercised by the competent authority(ies) as mandated by the terms of the statute. And manifestation of such powers and functions by the Commission resulted into an establishment of Anti-Quackery cell – regulated under the Regulations 2016. Regulations, 2016 defines an expression ‘competent authority’ in terms of regulation 2(c) and in terms thereof, the Commission is empowered to form committees for hearing of those matters reported to it, regarding acts and incidences of quackery – this manifests an intent to take steps to ban quackery in exercise of function assigned under section 4(2)(q) of the Act, 2010. Commission is a corporate body – juridical person – which operates and functions through assigns / delegatee(s) or bodies / committees, being qualified as an *alter-ego* of the Commission. Board constituted under section 5 of the Act, 2010 is not a Commission, nor the Chairperson could claim to be a Commission. Committee(s), instrumentalities of the Commission, in terms of Regulations, 2016, are empowered to examine the reports submitted by *Enforcement Managers*, scrutinize the reports, afford hearings to identified delinquents and make recommendations / orders, including imposition of fines, as the case may be –

imposition of fines are regulated under regulation 7(4) of the Regulations, 2016. Powers exercised by the Committee, be it the hearing committee, which is a competent authority, are manifestation of the powers and functions of the Commission. Exercise of powers, vested in the Commission, by the committee(s) constituted by the Commission, would not constitute a breach of section 28 of the Act, 2010, in the context of imposition of fines. Even otherwise this discussion has an academic significance only when the findings recorded in the case of Muhammad Tariq Javaid (supra) - confining the exercise of power of imposing fine exclusively by the Commission - were set aside by the Supreme Court of Pakistan in a case of 'Punjab Healthcare Commission through its Chief Executive Officer, Office No.185 Ahmad Block, New Garden Town, Lahore and another v. Muhammad Tariq Javaid and others' in **Civil Petition No.5355 of 2024**. Hence, imposition of fine by the hearing Committee is an exercise of the powers extended to the Commission and such act / decision falls within the scope of section 28 of the Act, 2010 - Commission is a juridical person and same operates through Committee(s) or assigns/delegatees, provided authority is extended by the Commission to exercise powers and discharge the functions of the Commission. This case is no exception.

9. I find no illegality in the decisions assailed and no alleged breach of any provision of Act, 2010 or an

incidence of excessive exercise of authority by the Committees – embodiment(s) of the Commission - in the context of the Act, 2010 and Regulations, 2016. Constitutional petition is devoid of merits and same is hereby dismissed. No order as to the costs.

(Asim Hafeez)
Judge

Decision is announced in open Court and simultaneously signed on 3rd June, 2025.

Approved for Reporting.

Judge

Judge